

26STCV09604 26STCV09604

County: los-angeles

Division: Civil Law and Motion

Department: 511

Hearing date: 2026-09-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C511%2C09%2F22%2F2026

Source SHA-256: db650bcc2fbca71a8150336810895c917ffe0482f3168eb6b3cd8fd3a28ce467

Case Number: 26STCV09604 Hearing Date: September 22, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September
22, 2026

CASE NAME: Tahliah
Barnett v. Shia LaBeouf

CASE NO.: 26STCV09604

MOTION
TO SEAL

MOVING PARTY: Defendant
Shia LaBeouf

RESPONDING PARTY(S): None

REQUESTED RELIEF:

,

1. An
order sealing the unredacted portions of the confidential settlement agreement
and mutual release attached as Exhibit 1 to the declaration of Shawn Holley in

support of Defendant's motion to compel arbitration filed on July 24, 2026.

TENTATIVE RULING:

1. Motion

to seal is DENIED without prejudice.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 25, 2026, Plaintiff Tahliah Barnett (p/k/a FKA twigs) (Plaintiff) filed a complaint against Defendant Shia LaBeouf (Defendant) for declaratory relief.

According to the complaint, Plaintiff and Defendant entered into a settlement agreement of a prior action. Plaintiff alleges the agreement contains an unlawful NDA (or gag order) purporting to prohibit her ability to discuss sexual abuse.

On July 2, 2026, Defendant filed a motion to compel arbitration.

On July 2, 2026, Defendant also filed a motion to seal the unredacted confidential settlement agreement attached as Exhibit 1 to the motion to compel arbitration.

On July 7, 2026, Plaintiff filed the operative first amended complaint (FAC).

On July 24, 2026, Defendant filed another motion to compel arbitration and another motion to seal.

Oppositions to the motion to seal were due on or before September 9, 2026. As of September 16, 2026, the court has not received any opposition.

LEGAL STANDARD:

"Unless confidentiality is required by law, court records are presumed to be open." (Cal. Rules of Court, rule 2.550(c); see also *Savaglio v. Wal-Mart Stores, Inc.* (2007) 149 Cal.App.4th 588, 597 (Savaglio); *Overstock.com, Inc. v. Goldman Sachs Group, Inc.* (2014) 231 Cal.App.4th 471, 483 (Overstock).)

The court may order that a record be filed under seal only if it finds that:

- (1) There exists an overriding interest that overcomes the right of public access to the record;
- (2) The overriding interest supports sealing the record;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550(d).)¿¿

An order sealing the records must:

(A)¿Specifically state the facts that support the findings; and

(B)¿Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.

(Cal Rules of Court, rule 2550(e)(1).)

A motion seeking an order sealing records must be accompanied by a declaration containing facts sufficient to justify the sealing.¿¿(Cal. Rules of Court, rule 2.551(b)(1).)¿“The findings themselves, however, may be sort forth in fairly cursory terms.” (Overstock, supra 231 Cal.App.4th at

p. 487.)

ANALYSIS:

Defendant contends relief is proper because the confidential settlement agreement contains sensitive financial information and private dealings between the parties which they agreed would remain confidential. Additionally, Defendant contends the contractual obligation not to disclose supports finding an overriding interest to keep the records sealed and that he narrowly tailored this request by redacting portions of the agreement rather than the whole thing.

The court has not received any opposition.

A binding contractual agreement not to disclose can be a potential overriding interest. (Universal City Studios, Inc. v. Superior Court (2003) 110 Cal.App.4th 1273, 1283.) “[O]nce it is established there is a potential overriding interest, the party seeking closure or sealing must prove prejudice to that interest is substantially probable.” (Ibid.)

Here, relief is not warranted at this time. Notably, while Defendant has identified a potential overriding interest via the confidential settlement agreement, they failed to provide evidence of prejudice to that interest. Indeed, the public-facing arbitration agreement already contains redactions. (Declaration of Shawn Holley In Support of Motion to Compel Arbitration, filed July 24, 2026.) Thus, relief is not warranted.

Accordingly, the court DENIES Defendant’s motion to seal without prejudice.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

1. Motion to seal is DENIED without prejudice.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 22, 2026 _____ Upinder

S. Kalra

Judge

of the Superior Court